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California passes non-UPF food seal, setting potential blueprint for other states

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California lawmakers unanimously passed AB 2244, creating a government-backed non-UPF food seal that could influence labeling in other states.

California lawmakers have unanimously approved the creation of a first-of-its-kind government-backed certification seal for non-ultraprocessed foods that supporters tout as a way to help consumers "identify healthier options with a quick glance," and which could serve as a blueprint for other states seeking to define, label and regulate UPFs.

Late last week, the state Senate voted 32-0 and the Assembly 72-0 to pass Assembly Bill 2244. If signed by Gov Gavin Newsom by the end of September, the bill would create a standard label with the phrase "Non-Ultraprocessed Certified," which food manufacturers could voluntarily place on products that meet the legislation's standards.

The bill broadly defines UPF as any food or beverage that contains one or more ingredients with a "specific technical effect," including surface-active agents; stabilizers and thickeners, propellants, aerating agents and gases; colors and coloring adjuncts; emulsifiers and emulsifier salts; flavoring agents and adjuvants; flavor enhancers – excluding spices and natural seasonings or flavorings; non-nutritive sweeteners.

It also defines UPFs as containing 10% or more total energy from saturated fat, a milligrams sodium to calorie ratio equal or greater than one to one, and 10% or more total energy from added sugars. Other substances that could trigger the UPF definition include D-sorbitol, erythritol, hydrogenated starch hydrolysates, isomalt, lactitol, monk fruit concentrate, maltitol, stevia glycosides, thaumatin and xylitol.

Manufacturers with products that meet this definition could seek certification from state-accredited third parties, which would need to be renewed at least every three years. The California Department of Public Health has until June 1, 2029, to identify the accreditors.

The bill also would create a Public Health Food and Nutrition Education Fund to support implementation of the label and to educate the public and stakeholders about the requirements, food products and nutrition. The department also could establish "reasonable" fees to register and renew accredited certification agents and food.

A powerful marketing tool

A California Certified Non-UPF seal could be a powerful marketing tool for qualifying products given the law would require large grocery chains in California to display products with the seal in prominent high traffic areas in the store.

"This new seal will provide consumers with clear, trustworthy information and make it easier for them to locate healthier foods that are free from harmful additives," said the bill's author, Assembly member Jesse Gabriel, D-Encino.

He added the legislation is the most recent step in a journey California began three years ago with the passage of the California Food Safety Act (AB 418 in 2023), followed by the California School Food Safety Act (AB 2316 in 2024) and most recently The Real Food Healthy Kids Act (AB 1264 in 2025) – all of which Gabriel authored.

These laws are foundational for the current legislation in that they define, for the first time the US, what ultra-processed foods are, and establish some parameters about where they cannot be sold.

While this legislation, and the previously passed laws on which it is based, only apply in California, the previous bills have spurred copy-cat legislation in states across the country – amplifying the original laws impact and setting the stage for similar replication of AB 2244.

What happens next?

California Gov Gavin Newsom has until September 30 to sign or veto the legislation.

If enacted, CDPH would have to establish the certification framework and accredit third-party certification agents, with the first certified products potentially following once the regulatory infrastructure is in place.

Whether California's seal becomes a recognizable consumer mark or a state-specific experiment could help determine whether the next phase of the US fight over ultra-processed foods plays out in the grocery aisle as well as the statehouse.

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